

The Assam Court-Fees (Amendment) Act, 1958

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State of Assam - Act

The Assam Court-Fees (Amendment) Act, 1958

ASSAM

India

The Assam Court-Fees (Amendment) Act, 1958

Act 3 of 1958

Published on 1 April 1958

Commenced on 1 April 1958

[This is the version of this document from 1 April 1958.]

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The Assam Court-Fees (Amendment) Act, 1958

Assam Act

No. 3 of 1958

Last Updated 11th February, 2020

[Dated 1st April, 1958]

Published in the Assam Gazette, Extraordinary, dated 28th March, 1958.

[Received the assent of the Governor on the 26th March, 1958]

An Act further to amend the Court-Fees Act, 1870 (Act 7 of 1870) in its application to Assam.

Preamble. - Whereas it is expedient further to amend the Court-Fees Act, 1870 (Act 7 of 1870) hereinafter called the Principal Act, in its application to Assam, in the manner hereinafter appearing:

It is hereby enacted in the Ninth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Court-Fees (Amendment) Act, 1958.

(2)

It extends to the whole of the State of Assam.

(3)

It shall come into force with effect from the 1st April, 1958.

2.

Amendment of Schedule I, Article 1.

Assam: Nagaland

For Article 1 the following Article was substituted, viz;

Number

Proper fee

"1.

Plaint, written statement pleading a set-off or counter-claim
or memorandum of appeal (not otherwise provided for in this Act)
or, of cross-objection presented to any Civil or Revenue Court
except those mentioned in Section 3

When the amount or value of the subject-matter in dispute
does not exceed one hundred rupees, for every five rupees, or
part thereof, of such amount or value,

Fifty naye paise.

and

When such amount or value exceeds one hundred rupees, for
every ten rupees or part thereof in excess of one hundred
rupees, up to one hundred and fifty rupees,

One rupee and seventy-five naye paise.

and

When such amount or values exceeds one hundred and fifty
rupees, for every ten rupees, or part thereof, up to one
thousand rupees,

One rupee and twenty naye paise.

and

When such amount or value exceeds seven thousand five hundred
rupees, for every two hundred and fifty rupees, or part thereof,
in excess of seven thousand five hundred rupees, up to ten
thousand rupees.

Fifteen rupees.

and

When such amount or value exceeds ten thousand rupees, for
every five hundred rupees, or part thereof, in excess of ten
thousand rupees, up to twenty thousand rupees,

Twenty-two rupees and fifty naye paise.

and

When such amount or value exceeds twenty thousand rupees, for
every one thousand rupees, or part thereof, in excess of twenty
thousand rupees, up to fifty thousand rupees,

Thirty rupees.

and

When such amount or value exceeds fifty thousand rupees, for

every five thousand rupees, or part thereof, in excess of fifty thousand rupees:

Thirty-seven rupees and fifty naye paise:

and

Provided that the maximum fee leviable on a plaint or memorandum of appeal shall not exceed ten thousand rupees."

3.

Amendment of Schedule I, Article 6.

- In the third column in Article 6 of Schedule I or the words "eight annas" opposite Clause (a) in the second column, the words "fifty naye paise" shall be substituted.

4.

Amendment of table of rates of ad valorem fees.

- For the table of rates of ad valorem fees leviable on the institution of suits, at the end of Schedule 1 to the principal Act, the table set forth in the Schedule to this Act shall be substituted:

The Schedule

Table of rates of ad valorem fees leviable on the institution of suits

[See Section 4 of the Assam Court-Fees (Amendment) Act, 1958]

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

(1)

(2)

(3)

Rs.

Rs.

Rs. Np.

...

5

0.50

5

10

1.00

19

15

1.50

15

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2.00

20

25

2.50

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3.00

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3.50

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4.00

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4.50
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8.00
80
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8.50
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9.00
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95
9.50
95
100
10.00
100
110
11.75
110
120
13.50
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130
15.25
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140
17,50
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150
18.75

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160
19.95
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21.15
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22.35
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23.55
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24.25
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210
25.95
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27.15
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51.15
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52.35
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54.75
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57.15
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58.35
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59.55

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61.95
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67.90
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71.55
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72.75
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73.95
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76.35
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78.75
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79.95

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81.15
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82.35
680
690
83.55
690
700
84.75
700
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85.95
710
720
87.15
720
730
88.35
730
740
89.55
740
750
90.75
750
760
91.95
760
770
93.15
770
780
94.35
780
790
95.55
790
800
96.75
800
810
97.95
810
820
99.15
820
830
100.35

830
840
101.55
840
850
102.75
850
860
103.95
860
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105.15
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880
106.35
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890
107.55
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108.75
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1,90,000

1,95,000

3,195.75

1,95,000

2,00,000

3,233.25

2,00,000

2,05,000

3,270.75

and the fee increases at the rate of thirty-seven rupees fifty naye paise for every five thousand rupees or part thereof, up to a maximum fee of ten thousand rupees, for example-

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

(1)

(2)

(3)

Rs.

Rs.

Rs.

3,00,000

3,983.25

4,00,000

4,733.25

5,00,000

5,483.25

6,00,000

6,233.25

7,00,000

6,983.25

8,00,000

7,733.25

9,00,000

8,483.25

10,00,000

9,233.25

11,00,000

9,283.25

11,05,000

10,020.75

5.

Amendment of Schedule II, Article I.

(1)

In the third column in Article 1 of Schedule II of the Principal Act, for the words "four annas" opposite Clause (a) the words "twenty-five naye paise" shall be substituted.

(2)

In the third column in Article I of Schedule II of the Principal Act, for the words "twelve annas" opposite Clause (a) the words "twenty-five naye paise" shall be substituted.

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